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Case Number: 20STCV46605 Hearing Date: June 30, 2026 Dept: 529

ALANNA FOUTZ, et al. vs AFTON PROPERTIES, INC. et al.

motion to tax defendants' cost memorandum

Date of Hearing: June

30, 2026 Trial

Date: N/A

Department: 529 Case No.: 20STCV46605

Moving Party: Plaintiff Ed Baran

Responding Party: Defendants Afton Properties, Inc.,

Harold Herskowitz, and My Management Co., Inc.

[Tentative] Ruling

Plaintiff Ed Baran's Motion to Tax Defendants' Memorandum of Costs

is GRANTED IN PART.

discussion

Plaintiff Ed Baran moves this court for an order taxing and/or striking items from Defendants' Memorandum of Costs filed February 17, 2026 in the total amount of \$74,438.59. Plaintiff makes the motion on the grounds Defendants Harold Herskowitz and My Management Co., Inc. are not prevailing parties; the court did not order a court reporter for trial; expert witness fees are impermissible because the court denied Defendants' claim for costs under Code

of Civil Procedure section 998; deposition costs for settled co-plaintiffs Maria McKenna, John Bassett, Lauren Mintzer, Greg Clark, and Josh Petker are improper as each settled their claims and waived any entitlement to costs; and certain electronic filing fees, remote appearance costs, and other "Other" costs were incurred for all defendants collectively, and any allowable amount must be apportioned to reflect only legitimate costs attributable to the sole prevailing defendant, Afton Properties, Inc.

"In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. If so, the burden is on the objecting party to show the costs to be unnecessary or unreasonable." (Foothill De Anza Cmty. College Dist. v. Emerich (2007) 158 Cal.App.4th 11, 2930.) "Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court." (Ladas v. Cal. State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.)

Prevailing Parties

Plaintiff Baran first argues that Defendants Herskowitz and My Management Co., Inc. are not prevailing parties and therefore not entitled to costs.

The term prevailing party is defined by statute to include: The party with a net monetary recovery; a defendant who is dismissed from the action; a defendant where neither plaintiff nor defendant recovers anything; and a defendant as against those plaintiffs who do not recover any relief against that defendant. (CCP § 1032(a)(4).)

Plaintiff argues as to Defendant

Herskowitz, the court's Fee Order expressly held that Herskowitz is not the prevailing party. The jury found Herskowitz liable for breach of the warranty of habitability, awarded \$2,000 in damages against him, and abated approximately \$50,000 in back rent that Herskowitz was owed. Because plaintiff obtained a "net monetary recovery" of roughly \$52,000 from Herskowitz, Herskowitz may claim no costs against Ed Baran. As to My Management Co., Inc., although the jury assessed zero dollars in separate damages against My Management—apportioning 100% of damages to Herskowitz—the jury nonetheless found My Management liable. A defendant who is adjudicated liable on a cause of action has not obtained a

favorable judgment within the meaning of section 1032(a)(4). (See, e.g., *Michell v. Olick* (1996) 49 Cal. App. 4th 1194, 1198.)

Defendants do not address this contention in their opposition.

The court agrees Defendants Herskowitz and My Management Co., Inc. are not entitled to costs. The court has previously found that Afton was the prevailing party and awarded it \$500 in attorney fees. The court, therefore, must separately consider Afton's request for costs. (The court does not disturb its earlier ruling that none of the defendants are entitled to costs or fees under Section 998.)

California courts have consistently held that a prevailing party may only recover costs actually incurred by that party or on that party's behalf in prosecuting or defending the action. (*Fennessy v. Deleuw-Cather Corp.* (1990) 218 Cal.App.3d 1192.) Accordingly, the court "must apportion the costs between the parties' [based on the reason the costs were incurred and whether they were reasonably necessary to the conduct of the litigation by the jointly represented party who prevailed].' [Citations.]" (*Charton v. Harkey* (2016) 247 Cal.App.4th 730, 744.) "In allocating costs between jointly represented parties, however, the trial court may not make an across-the-board reduction based on the number of jointly represented parties because such an allocation fails to consider the necessity or reasonableness of the costs as required by section 1033.5, subdivision (c)." (*Id.* at p. 744-745.)

Here, based on the declaration and invoices provided, the interests of the parties completely aligned and all the work done was reasonably necessary to the conduct of the litigation as to Defendant Afton.

Reporter Fees

Plaintiff moves to tax the entire \$31,497.50 claimed for court reporter fees on the grounds the court reporter was not authorized by this court.

Court reporter fees are

recoverable when established by statute. (CCP § 1033.5(a)(11).) Plaintiff argues the court did not appoint or order a court reporter for the trial. The court's own Minute Order for January 20, 2026 reflects "CSR: None[]" and the trial transcript confirms that no official court reporter was present. Instead, Defendants chose to retain a private court reporting service, Magna Legal Services, at their own expense and for their own convenience. Accordingly, such private court reporter fees are not recoverable under section 1033.5(a)(9) or (11) because they are not "established by statute."

In opposition, Defendants argues they required trial transcripts to adequately prepare for witnesses and to prepare for closing arguments throughout the course of trial and in order to preserve the trial record. Accordingly, Defendants did in fact incur reasonable court reporter fees in the amount of \$31,497.50.

The court did not appoint or order a court reporter in this case. Accordingly, the court taxes the entirety of the court reporter fees sought, or \$31,497.50.

Expert Fees

Plaintiff moves to tax the \$23,675 in expert witness fees because the court denied Defendants' 998 Offer.

Expert fees are generally not allowable as costs except when expressly authorized by law. (CCP § 1033.5(b)(1).) However, expert fees are recoverable when a defendant conveys a settlement offer, it is rejected, and the plaintiff fails to obtain a more favorable judgment or award, the court has discretion to require the plaintiff to cover those costs. (CCP § 998(c)(1).)

Plaintiff argues the court has already ruled, in its January 20, 2026 Fee Order, that Defendants are not entitled to section 998 costs. Plaintiff contends the court applied the analysis from *Kahn v. The Dewey Group* (2015) 240 Cal. App. 4th 227, holding that the joint, undifferentiated offer to compromise submitted by all three defendants for \$50,000 must be compared to the total judgment

against all offering defendants collectively, not against any single defendant in isolation. Because Plaintiff's total recovery against Herskowitz and Afton together was approximately \$52,000—exceeding the \$50,000 offer—the judgment was more favorable to Plaintiff than the offer and no section 998 costs are owed.

In opposition, Defendants argue because Plaintiff was unable to obtain a more favorable judgment at trial, Defendants should be awarded their post-offer costs, including their expert witness fees, in the amount of \$23,675. (Exh. E.)

The court agrees Defendants are not entitled to expert fees. The court has expressly found “neither of the defendants is entitled to an award of costs under Section 998 because the total judgment against Herskowitz and Afton Property was \$52,000 (even though Afton was not required to pay any of it).” (January 20, 2026 Minute Order.) Plaintiff has obtained a more favorable judgment.

Based on the foregoing, the court strikes the \$23,675.00 in expert fees.

Deposition Costs

Plaintiff seeks to tax the deposition costs of settled co-Plaintiffs. Plaintiff argues Defendants' cost worksheet includes deposition costs for multiple individuals who are not the remaining plaintiff in this action—specifically, costs for depositions of Maria McKenna (\$586.70), John Bassett (\$167.64), Lauren Mintzer (\$175.70), Greg Clark (\$185.20), and Josh Petker (\$203.90). Plaintiff contends the costs are not recoverable for two reasons -- each settling plaintiff's settlement extinguished the claims and obligations running between that plaintiff and Defendants and the depositions were not “reasonably necessary to the conduct of the litigation as they were taken in connection with those individuals' personal claims (claims that never went to trial against Ed Baran's trial).

In opposition, Defendants argue the costs are recoverable as each of these plaintiffs testified at trial as ordinary witnesses. Moreover, Defendants attended their depositions and incurred costs related to their depositions.

The court finds Defendants are entitled

to costs. Under *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129, the court noted the non-settling plaintiff could not benefit from cost-waiver provisions in settlement agreements to which she was not a party, even when those agreements include broad mutual releases. Instead, the deposition costs must still meet the statutory requirements of being actually incurred, reasonably necessary to the conduct of the litigation at the time they were taken. At the time the depositions were noticed of the settling Plaintiffs, Afton could not have known which ones would settle and which ones would have proceeded to trial.

Accordingly, the court denies the motion to tax deposition costs.

Remaining Costs

Plaintiff argues the remaining cost items must be apportioned, and to the extent attributable to non-prevailing Defendants, taxed.

i.

Jury Fees

Plaintiff first argues the jury fees (\$1,398.40) should be taxed on the grounds the \$1,398.40 claimed reflects fees advanced on behalf of all defendants collectively. Plaintiff contends given that Afton's role in the litigation was secondary and that Herskowitz was the primary defendant responsible for the judgment, it would be inequitable to hold Plaintiff responsible for the entirety of jury fees attributable to Herskowitz's defense.

The court agrees the jury fees should be taxed as each Defendant had to pay for the jury fees. (See CCP §631.) Accordingly, the court strikes \$932.26.

ii.

Models, Enlargements and Photocopies of Exhibits

Next, Plaintiff argues the \$4,950.23 in "preparation of exhibit binders" must be taxed as Defendants have made no showing that these exhibits were reasonably necessary or that they related to

Afton's defense specifically as opposed to Herskowitz's defense. In opposition, Defendants argue these exhibits (Exh. G) were in preparation for trial. Exhibit G is one invoice. The court finds that the proper apportionment of these costs is again to allocate one third of the cost to the Afton defendant, striking \$3267.15.

iii.

Fees for electronic filing or service

As for

the electronic filing fees, Plaintiff argues many of the filings relate to all three defendants—including the Motion for Attorneys' Fees filed after trial. Accordingly, because it is impossible to apportion these fees, the court denies the motion to tax costs.

iv.

Other

As for the Other Costs, the

"Other" category encompasses "Remote appearance, Subpoena Records, Mediation, Document Production" totaling \$6,761.15. Plaintiff argues mediation costs are expressly disallowed under section 1033.5(b)(8). Moreover, remote appearance fees are permissible only if those appearances were ordered or required by the court. Plaintiff contends Defendants have provided no itemization of this catch-all category, making it impossible to evaluate which specific items (if any) are legitimate. The entire \$6,761.15 should be disallowed unless Defendants provide a detailed, item-by-item breakdown demonstrating that each expense was court-ordered or otherwise allowable, and attributable to Afton Properties' defense of Baran's specific claims.

In opposition, Defendants provide copies

of the invoices pertaining to the remote appearance, subpoenaing records, mediation, and document production that were disclosed on section 15 of Defendants' Memorandum of Costs worksheet under "other." (See Exh. I.)

Regarding mediation, "mediation fees

incurred for mediation that was not ordered by the court are not categorically nonrecoverable as 'not reasonably necessary to the conduct of litigation.' The question whether mediation fees should be awarded as costs in a particular matter must be determined based on the facts and circumstances of the

particular action.” (Berkeley Cement, Inc. v. Regents of University of California (2019) 30 Cal.App.5th 1133, 1143.) In at least one case, the court has held parties who wish to preserve the right to seek cost recovery of shared mediation fees must expressly say so in their agreement. (See Anthony v. Li (2020) 47 Cal.App.5th 816, 825.) There is nothing before the court that the parties reserved the right to later seek recovery after dividing the mediators fees. The court taxes \$3,925.00.

As for remote appearances, remote appearance fees are not specifically enumerated as either allowable or disallowable costs under Section 1033.5. Defendant has not provided any reason for the remote appearance. Accordingly, the court strikes \$15.00. Looking at the subpoena records and document production invoices, Defendants provide no real explanation. The court also strikes these costs.

Accordingly, the court strikes \$6,761.15
in Other Costs.

\$500 Attorney Fees

The court has already ruled on the request for attorney fees and strikes the request from the Memorandum of Costs.

Accordingly, the motion to tax
Defendants’ Cost Memorandum is GRANTED IN PART.